

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1479

By: Fugate

AS INTRODUCED

An Act relating to health insurance; amending 36 O.S. 2021, Section 3634.3, which relates to health insurance plan providing prescription drug coverage; requiring insurance notification of prescription drug coverage; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 36 O.S. 2021, Section 3634.3, is amended to read as follows:

Section 3634.3. A. A health insurance plan or policy or health maintenance organization providing prescription drugs as a covered benefit shall provide a pharmacy or group of pharmacies with the right to bid on a periodic basis, but not less than every three (3) years, on any pharmacy contract to provide pharmacy services, including, but not limited to, prescription drugs.

B. A health insurance plan or policy or health maintenance organization providing prescription drugs as a covered benefit shall notify its customers in writing at least thirty (30) days in advance of renewal of the insured's insurance premium if the health

1 insurance plan or policy or health maintenance organization is no
2 longer providing coverage for a medication that was prescribed or
3 purchased in the past year by the insured.

4 C. Nothing in this act shall be interpreted to preclude a
5 health insurance plan or policy or health maintenance organization
6 from establishing an open pharmacy network for the provision of
7 pharmacy services, including, but not limited to, prescription
8 drugs.

9 ~~C.~~ D. The provisions of this section shall not apply to a
10 health insurance plan or policy or health maintenance organization
11 that maintains an open pharmacy network.

12 SECTION 2. This act shall become effective November 1, 2025.
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